

**Whether a gift of residuary personal estate will pass lapsed legacies from proceeds of sale of real estate.**—The question was much discussed before the late Wills Act, and may still be material, what expressions of a testator will amount to such an absolute conversion of real estate into personal, that a *void or lapsed legacy* given out of the proceeds of the sale shall, as if the property had been personal, fall into the residuary bequest, instead of resulting to the heir. “I agree,” said Lord Brougham, “a testator may provide that lapsed and void legacies \* shall go in this manner, as if the testator say in express words, ‘I give all lapsed and void legacies as parcel of my residue to the residuary legatee,’ and if he can do it by express words, he can do it by plain and obvious intention to be gathered from the whole instrument” (a). But what will amount to such an implication is a point that can with difficulty be brought under any very definite rule.

**Results of the authorities.**—Apparently the only principle to be extracted from the authorities is, that a lapsed or void legacy will pass to the residuary legatee, *if the testator expressly declare that the proceeds of the sale shall be considered as “personal estate,” or if the intention of an absolute conversion into personal estate for all the purposes of the will can, without the aid of any such express declaration, be gathered from the general structure of the will* (b).

**Next of kin and residuary legatee distinguished.**—It was stated in a former page, that if a testator direct the proceeds of the sale to be taken as “*personal estate*,” a part of the proceeds undisposed of by him will nevertheless not result to the *next of kin*. The distinction between the *next of kin* and the *residuary legatee* is this: the former claim *dehors* the will, while the latter is a claimant *under* the will, and when the

v. Wakeman, 2 Ves. jun. 683, the sum undisposed of did not fall into the residue on the principles adopted in *Davers v. Dewes*, 3 P. W. 40, and *Attorney-General v. Johnstone*, Amb. 577.

(a) *Amphlett v. Parke*, 2 R. & M. 232; and see *McClelland v. Shaw*, 2 Sch. & Lef. 545.

(b) *Durour v. Motteux*, 1 Ves. 321 (see the will stated from Reg. Lib. in *Jones v. Mitchell*, 1 S. & S. 292, note (d)); *Kennell v. Abbott*, 4 Ves. 802; *Amphlett v. Parke*, 1 Sim. 275; S. C. 2 R. & M. 221; *Green v. Jackson*, 5 Russ. 35; S. C. 2 R. & M. 238; *Salt v. Chattaway*, 3 Beav. 576. [And see *Singleton v. Tomlinson*, 3 App.